

IN THE {court}, {county} COUNTY, WEST VIRGINIA{caseNumberLine}

JAMIE Q. SAMPLE,
Applicant.

DOCKET NO.: [TO BE CONFIRMED]

APPLICATION FOR AN ORDER EXPUNGING ALL OFFICIAL RECORDS OF THE ARREST, TRIAL AND
CONVICTION PURSUANT TO W. VA. CODE § 17C-5-2b(g)

STATUTORY AUTHORITY

W. Va. Code § 17C-5-2b(g) — After a period of not less than one year beginning to run immediately on the expiration of the term of probation, the person may apply to the court for an order expunging all official records of the arrest, trial and conviction, except those maintained by the Division of Motor Vehicles; a person previously convicted of a felony may not make that motion; objections are filed within 30 days of service, and if objections are filed the court holds a hearing and, if it determines there was no serious or repeated violation of the conditions of probation, it shall order the expungement.

W. Va. Code § 17C-5-2b(g)(1) — The clock: not less than one year, beginning to run immediately upon the expiration of the term of probation. It runs from the expiration of probation, not from the dismissal.

W. Va. Code § 17C-5-2b(a) and (b) — The predicate the submission rests on: the court, without entering a judgment of guilt, deferred further proceedings and placed the participant on probation conditioned on successful completion of the Motor Vehicle Alcohol Test and Lock Program under § 17C-5A-3a.

W. Va. Code § 61-11-25(a), read with § 17C-5-2b(g)(1) — The hard limit on the relief requested: no Division of Motor Vehicles record may be expunged by virtue of any order entered pursuant to § 17C-5-2b, and subsection (g)(1) itself excepts records maintained by the Division of Motor Vehicles. Carried so the application never asks for relief the section withholds.

I. JURISDICTION AND VENUE

1. This Court has jurisdiction over this matter as the {court}, [COUNTY TO BE CONFIRMED] County, West Virginia, where the proceedings occurred.

2. Venue is proper in this Court because the criminal proceedings that are the subject of this application occurred in [COUNTY TO BE CONFIRMED] County, West Virginia.

II. PARTIES

3. Applicant is JAMIE Q. SAMPLE, whose address is 000 EXAMPLE STREET, EXAMPLE CITY, WV 00000.

4. Applicant has also been known as: J. Q. SAMPLE.

III. FACTS AND CASE HISTORY

5. On or about [PARTICIPANT'S OWN ARREST DATE — NOT SUPPLIED BY LEGALEASE], Applicant was charged with [PARTICIPANT'S OWN DESCRIPTION OF THE CHARGE — NOT SUPPLIED BY LEGALEASE] by [PARTICIPANT'S OWN ANSWER: THE AGENCY THAT ARRESTED THEM — NOT SUPPLIED BY LEGALEASE].

6. The matter was assigned Docket Number [TO BE CONFIRMED].

7. The matter was resolved with the following disposition: proceedings deferred under W. Va. Code § 17C-5-2b

without entry of a judgment of guilt; probation imposed; Motor Vehicle Alcohol Test and Lock Program completed; charges dismissed and defendant discharged under W. Va. Code § 17C-5-2b(c). [DISPOSITION DATE TO BE CONFIRMED]

IV. ELIGIBILITY ALLEGATIONS

8. Applicant may be eligible for expungement on the following basis: [ELIGIBILITY BASIS TO BE CONFIRMED].

IMPORTANT: Applicant may be eligible; this document does not guarantee eligibility or a court outcome.

V. REQUESTED RELIEF

WHEREFORE, Applicant respectfully requests that this Court:

- (a) Grant this Application and enter an Order directing the expungement of all official records of the arrest, trial and conviction in the case identified in this application, except those maintained by the Division of Motor Vehicles in the above-captioned matter;
- (b) Direct all criminal justice agencies having custody of such records to expunge all records relating to this matter; and
- (c) Grant such other and further relief as this Court deems just and appropriate.

VI. VERIFICATION

JAMIE Q. SAMPLE
000 EXAMPLE STREET, EXAMPLE CITY, WV 00000

Date: _____

[NOTE: Date of birth and Social Security Number should be added by applicant if required by the applicable form or local court rules.]

Prepared by applicant using LegalEase RCAP. This is not an official court form.